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[00:00:32] here, and we are certainly sorry for the delay, but we're happy to have everybody with us again. Let's pause for a moment of silence. About the pledge.

[00:00:54] We're pledging to the flag of the United States of America, and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:01:14] Okay, well, happy new year to everybody. Board looks forward to a great 2022 like to welcome Elizabeth Schultz who's with us deputy superintendent of public instruction for I Guess now your second meeting with us since we met yesterday. Welcome First up on the agenda is the approval of minutes from the November 17 and 18th Meetings of the board is there a motion to either approve the minutes as drafted or to a amend so moved That's as drafted Dr As drafted, yes.

[00:01:49] Thank you. Is there a second? Second. Thank you, Mr. Swan. Any discussion? All those in favor, signify by saying aye. Aye. Any opposed? No. That carries. Okay, public comment. Speakers will be recognized in the order in which the request was received.

[00:02:05] Speakers are asked to limit their remarks to three minutes. When your time is up, please close your remarks promptly. We ask that you please provide your name and affiliation at the beginning of your remarks. Speakers may provide copies of their comments. email a copy of your remarks to Emily Webb,

director of board relations, after you finish speaking. To the best of my knowledge, nobody has signed up in advance, which is incredibly unusual for this board. Is there anybody here who would like to address the board during the public comment session? Yeah, I'm seeing nobody. We'll close public comment, and now we will do the main

[00:02:44] event, which is recognition of the 2022 Virginia Regional Teachers of the Year and the 2022 Virginia Teacher of the Year. Mr. Swan. Mr. Swan: Morning, Mr. Gecker, Dr. Wilson, and board members. This is a topic dear and close to my heart as I was the 2021 Virginia Teacher of the Year. Today, it is my pleasure to recognize eight very special people, Virginia's Teacher of the Year for 2022 and the Regional

[00:03:22] Teachers of the Year for 2022. And recognizing each of these individuals today, we are confirming the excellence in education that their peers, coworkers, and students see from them on a daily basis. Their enthusiasm for education and their excitement for sharing their knowledge are evident, not only in their classrooms, but in all aspects of their lives.

[00:03:46] Their commitment and passion for what they teach is a shining example of the difference a teacher can make in the lives of students every day. I would like to thank Dr. Joan Johnson, Miss Jonelle Tolbert and the entire teacher education team hard work to make Virginia's teacher of the year program such a success.

[00:04:07] We are honored to have with us today these outstanding teachers. I joined the board in thanking them for their hard work, generosity of heart and mind, and for their devotion to Virginia's children and you. As I introduce each of you, I ask that each of you stand and come to the podium.

[00:04:25] Region one, Mrs. Ashley Bland. - Mrs. Ashley Bland is an instructional technology resource teacher at John B. Carey Elementary School.

[00:04:40] She represents Richmond City Public Schools as the region one teacher of the year. She has both a bachelor in biomedical engineers and a bachelor in physics. Mrs. Bland's experiences at VCU catapulted her into many opportunities to engage with Richmond youth.

[00:04:58] One of the most meaningful experiences was with serving as the pre-college initiative chair for the VCU chapter of the National Society of Black Engineers, the largest student-run organization of its kind in the country. She is also a leader with Cary's EcoCampus and an advocate for equity in RPS.

[00:05:20] Mrs. Gathaday, her sister, Kendra Jackson, mother-in-law, Terrietta Blair, mother, Karen Thompson, and grandmother, Ann Morris, as well as her husband daughter joining us virtually Alonza Bland and Alani Bland. Congratulations Mrs. Bland.

[00:05:41] Region 3 Mr. Robert Lafollette. Mr. Lafollette is a science mathematics and career and technical education teacher. He represents Essex County Public Schools as the Region 3 Teacher of the Year. He earned a Bachelor of Science degree in physics at Emory and Henry College and completed initial teaching certification through various local community colleges and the University of Phoenix. Currently he is enrolled in a master's degree program in mathematics education with Radford University. Mr. Lafollette sponsors student interest in STEM subjects through numerous

[00:06:21] programs. He co-created the Tidewater Regional Physics Olympics competition and has led Essex high schools skills USA robotics team to both first and second place state finishes congratulations region four mr howard brewer jr mr howard brewer jr teaches at the transition support resource center in

alexandria virginia he represents fairfax county public schools as the region four teacher of the year mr brewer earned his bachelor of arts in english at the

[00:07:01] university of the district of columbia and subsequently earned both a teacher mentor certification and a man's system certification with fairfax county doing his 21-year teaching career he has worked as a new teacher practice instructor with the office of bilingual education in washington dc and has served as a teacher with the intricacy alternative schools since 1999. for For the last six years, Mr. Brewer has served in a lead teacher capacity and a system comprised of 23 teaching locations.

[00:07:37] Mr. Brewer's guest today is his wife, Sylvia Brewer. Congratulations, Mr. Brewer. We have Region 7, Ms. Ashley Cannon. Ms. Cannon is a health and physical education teacher.

[00:07:53] She represents Smith County Public Schools as the Region 7 Teacher of the Year. She earned a Bachelor of Arts in athletic training and physical education from Emory and Henry College, where she also volunteered for the school's mentor program. She continued her education and earned a master's degree in rehabilitation, exercise science, and health promotion, and with a concentration in corrective exercise from California University of Pennsylvania.

[00:08:23] Ms. Cannon has served at the health and physical education at Atkins Elementary School for the past 11 years. Since 2017, Ms. Cannon also has taught as an adjunct professor at Wythville Community College.

[00:08:39] Her guest today is her husband, Stephen Cannon. Congratulations, Ms. Cannon. Region 8, Mr. Brendan Conroy. Mr. Brendan Conroy is an alternative education teacher at Appomattox County Public Schools.

[00:08:59] He represents Appomattox as the Region 8 Teacher of the Year. Mr. Conroy earned his Bachelor of Science in Marine Engineering with an emphasis in nuclear power generation from the United States Naval Academy. In 2001, Mr. Conroy received a Master of Business Administration with a focus on global management from the University of Phoenix.

[00:09:22] He completed a University of Phoenix Career Switcher Teacher Certification in 2020. Mr. Conroy came to the teaching profession after a career as an officer in the U.S. Navy. He served as a training officer for the fourth company of the United States Naval Academy and as an academic instructor in the International Military Training Department of the U.S. Naval Aviation Schools.

[00:09:47] Mr. Conroy serves as an instructor for the General Education Development Program and the Individual Student Alternative Education Plan Program, which features language arts, mathematics, science, and social studies for grades 9 through 12.

[00:10:02] Before I introduce, congratulations, Mr. Conner. Before I introduce the 2022 Virginia Teacher of the Year, I want to acknowledge and celebrate the Region 5 Teacher of the Year, Mr. Matthew Olserton, an English language arts educator at Liberty High from Bedford County Public Schools and Region 6 Teacher of the Year from Roanoke Public Schools, Mrs. Ebony Harrington, a mathematics teacher at Lucy Addison Middle School.

[00:10:36] They could not be with us today due to prior commitments. Congratulations, Region 5 and Region 6. Now, Ms. Daphne Folson. Ms. Daphne Folson is our 2022 Virginia State Teacher of the Year.

[00:11:03] Ms. Folson is a second grade teacher in Chesapeake Public Schools. She represents Region 2 as well for being the Teacher of the Year. She was a communication and special education double major with a double minor in social welfare and English.

[00:11:20] She is completing her master's in educational leadership at ODU and will graduate May of 2022. She holds the National Council for Accreditation of Teacher Education certification with the Teach in English to Speakers of Other Languages International Association and holds an International Teach in English as a foreign language certificate.

[00:11:42] Besides her current role in school as a general education teacher of second grade, Ms. Fulson is called to engage with various communities beyond the classroom, from serving as a National Association for the Advancement of Colored People Regional Judge, to a Domestic Violence Prevention Project Coordinator, to Big Sister Volunteer, to a Spanish-English Volunteer Translator, to a published author of a children's book titled When I Grow Up, Ms. Fulson gives voice to the mission of myriad clubs, organizations, and communities.

[00:12:17] Ms. Fulson's guest today is her principal, Ms. Heather Bruso. Additionally, she has a host of guests watching virtually, including her father and stepmother, Kenneth and Rochelle Fulson, mother, Renee Riley, instructional assistant, Mrs. Mullen, her second grade class, assistant principal, Mrs. Frazier, her mentor, Mrs. Campbell, her ODU Graduate Cohort, Teacher for America Family, and her Portlock Primary Family.

[00:12:51] Congratulations Mrs. Fulson. At this time, Mrs. Fulson, would you like to have comments for the board?

[00:13:07] Good morning, everyone. My name is Daphne Tamara Fulson, and this is my little nugget journey from the kicks of it. We're both excited to be here. I want to say thank you for having me.

[00:13:22] Out of nearly 100,000 teachers in the state caring for nearly 1.2 million students, you have put your trust in my hands, and that is an honor. I knew in second grade that I wanted to be a teacher and have transformational change, but I couldn't have imagined in a million years that I would have this platform to step in front of an entire state and also be a representative for the nation to have a voice to stand on.

[00:13:48] I also want to say that I am humbled to be in the presence of amazing educators. The other Regional Teachers of the Year are amazing. You just heard some of their accolades, and that's just the tip of the iceberg. I also get to work with the top 56 teachers in the nation, and they are also very, very amazing.

[00:14:07] Not to mention the teachers that I work with daily at my school, Portlark Primary. Hi, everybody. Hi, class. And I just want to say that it's not an individualistic thing. It's definitely a community effort. I look around and I'm floored. I am humbled and it's not something that I take lightly to stand here as the 2022 Virginia State Teacher of the Year.

[00:14:29] Yes, it's amazing to be in articles and have pictures taken and all of those things, but I don't want you all to let that be the moment that stands for me as the Teacher of the Year. I want you to look back and say, wow, Daphne Tamar Folson, 2022 Teacher of the Year, she hit me here in my heart.

[00:14:44] She impacted me in this way. She made me rethink my mindset. I want people to look back and know that I consider the thoughts and feelings of everyone around me, students, teachers, parents, and all

community stakeholders. I want to be able to lift their voices and leverage their strengths and allow us to all come together for a better collective.

[00:15:04] I want you all to understand that I do understand the intentions of collaboration. I look forward to the tough conversations that will be had. We are in the midst of many, many, many pandemics, not just Corona. So I want to let you all know that I look forward to the conversations with people who share the same passions, ideologies, and philosophies as me, but I also look forward to the conversations with those who do not share the same ideologies as me because we can't get anywhere if we all are agreeing on the same things.

[00:15:35] We have to have those types of discourse, and I look forward to them. I welcome the conversations that are ahead of me, and I want you all to note that as long as the kiddos are at the center of our conversations, I'll be there, full mind, body, spirit um mr swan has already named some of the amazing people that i want to thank but i want to thank y'all too so thank you mom dad miss rachel thank you to all my sisters and brothers and my nieces and nephews definitely my portlock odu and teach for america family my amazing ta mrs mullen i love you so much thank you and you're with my kiddos now hi class i love you so much and i miss

[00:16:10] you and i want to say thank you to my mentor miss campbell she's been there with me ever since i walked into public school and thank you to you too mr swan you have been a rock for me i couldn't have made it to this point and i know i'm not going to make it through the year without you definitely thank you mrs brusso for being here with me you've been there every step of the way as well if i didn't get to say your name it's because they only gave me a few minutes but i

[00:16:33] love you and i do appreciate you and thank you so much for having me here it is an honor congratulations to daphne fulson and to each of our regional teachers of the year thank you all for what you do to make Commonwealth's future bright, and thank you for staying on the battlefield of education during a tough time such as this. At this time, we're going to take a picture

[00:17:07] with the board.

[00:17:30] I know that several of our teachers of the year have already exited, but I wanted to

[00:19:23] just acknowledge that many, I note that many of them have science, technology, engineering, mathematics backgrounds. I also noted I have the opportunity to introduce them back in the fall. And I believe at least three, perhaps four, are veterans of the armed services. And so I think that is an incredible cadre of individuals that we have representing our state. So I wanted to just acknowledge those two pieces. Thank you, Dr. Wilson. Okay, anybody want to go on or are we

[00:20:01] done for the day. Now we're spent. Okay. The consent agenda, items A and B. Is there a motion either to adopt and approve the consent agenda as drafted or to remove an item? Move to adopt. Thank you, Dr. Robertson. Is there a second?

[00:20:20] Thank you, Dr. Wilson. All those in favor, say aye. Aye. Any opposed? Carries. Discussion items. Item C, final review of the advisory board and teacher education licensure's recommendation for passing score for Praxis. Dr. Johnson?

[00:20:36] Okay. Thank you. Yeah. I can't see around that screen. Good morning. Good morning. I thought I was using an old agenda or something. No.

[00:20:52] I'm here. Good morning, President Gecker, Vice President Wilson, State Superintendent, and board members. I would like to group items C and D for the sake of time.

[00:21:11] But as you know, we'll present and request specific approval of the separate items regarding our subject assessments. So again, this is the final review for the middle school assessment as well as the math for secondary.

[00:21:28] A bit, again, I would like to also acknowledge we have guests today, Mr. Malik McKinley, who is the director of client relations and teacher licensure and certification with ETS. I would like to recognize him and he could probably come up closer because I'm gonna give him all the hard questions Regarding the assessments today. So again, I thank him for coming from New Jersey to be with us today a little bit of background Currently the board requires the following assessments for initial licensure as Michael

[00:22:03] Virginia communications and literacy assessment the VCLA practice subject assessments and reading for Virginia educators or the ve for specific endorsements specifically as we're talking about today the board prescribes the praxis subject assessments as a professional teacher's assessment requirement for initial licensure in our state the current prescribed assessments of mathematics the mathematics endorsements and the middle school for which we are focused on today have been updated as we shared previously the regenerated praxis for mathematics as well as the middle school will be offered by

[00:22:42] ETS or the educational testing services in the coming months a cut score needs to be established in just a few details regarding that process the proposed recommendation from the advisory board on teacher education and licensure is to set a passing score for the praxis middle school mathematics 5164 tests for middle school education six through eight endorsement the test will be required for individuals seeking initial licensure unless exempted by holding a a full or clear out-of-state license with no deficiencies and can be taken and passed to add an endorsement

[00:23:20] in middle school six through eight. Mathematics by individuals holding a valid renewable license. The current board prescribes the assessment for middle school and furthermore, the board established the following past scores for the Praxis II middle score test five, one, six, nine at 31 out of the possible 45 raw points or a 165 scale score on a 100 to 200 scale.

[00:23:48] Again, a passing at 165. The advisory board members reviewed the standard setting materials that you also have been provided and determined and making a recommendation for a passing score of 150 minus one CSEM below the standard setting, the panel's recommendation.

[00:24:10] Two, the proposed recommendation from the advisory board of teacher ed licensure is to set a passing score for the praxis mathematics 5165 test for the mathematics endorsement the test will be required for individuals seeking initial license unless exempted from holding a full valid out-of-state license with no deficiencies and again can be taken and passed to add that endorsement as well with individuals that have a valid renewable license the board prescribes the praxis subject assessments as a professional teacher's assessment required for individual licensure in our state and the current board of education's prescribed

[00:24:48] assessment for mathematics is a praxis mathematics content knowledge 5161 furthermore the board established the following past score for the praxis mathematics content 5161 at 32 raw score points 160 scale score on a scale from 100 to 200. again emphasizing past score of 160. again advisory board have

reviewed the standard setting recommendations and now today they're recommending for final review passing score of 152 a negative one csm below the standard setting panel's

[00:25:24] recommendations you also have before you again the three attachments supplied to us from ets the multi-state standard setting technical report which includes three sections describing the content and format of the test the second section standard setting process and procedures and methods for that process and the third section of a standard setting study and recommendation and third document the practice study companion both of the assessments being reviewed today

[00:25:58] as requested during the first review in november a literature review and analysis of licensure assessments and student outcomes was provided to the board in advance of this meeting i think i think that's it that is my presentation for today thank you uh any questions or comments from board members uh mr swan uh thank you so much uh dr johnson i just want to acknowledge

[00:26:35] the effort in lowering those scores because that's one of the barriers of getting good qualified teachers and getting teachers to pass the practice test so i appreciate you and the board's recommendation to lower those scores those cut scores anybody else salton if i may just thank the research department for the literature review on the value of uh of these assessments i apologize

[00:27:10] i could also i would like to thank our research department as well as the learning policy institute you notice they also contributed to that literature review as well as personal communications from ets i wanted to reflect various perspectives in that process thank you and i'm sure we'll continue that discussion in future meetings okay if not i take it that uh we're being asked for you know an item c to prove the proposed score that's correct and so i think we've had some guidance not to make the recommendation on behalf of the state superintendent

[00:27:48] and so i was waiting for direction on that but i certainly can read what we have proposed president gecker so for the item c the the advisory board recommends to establish a cut score for the praxis middle school mathematics test individuals may take either the currently prescribed assessment for middle school mathematics praxis middle school 5169 or the new Praxis Middle School Mathematics 5164 test through August 2021. In September of 2021,

[00:28:27] only the new Praxis Middle School Mathematics 5164 test will be offered in Virginia. Beginning September 2022, the Praxis Middle School Mathematics 5169 test will be accepted only for those individuals who took and passed the test during the period it was prescribed by the boy okay is there a motion on item c president gecker even before the motion i know you called for discussion i just think it's important to note and miss holton did articulate the usefulness of

[00:29:04] the literature review um and i know these materials have been made accessible to others i do think it's important to just highlight how striking it is as you sort of look at the data and you try to make connections between sort of what these tests predict in terms of outcomes and and we are a board that is concerned about outcomes and i think it's important to to reference that as we are endeavoring to use data to make decisions about what we should and should be doing um so i just

[00:29:41] i felt it was important to say that as a part of this because of course we've had many interesting discussions about things of this nature and to be informed by what the science has to say about these things are very important so i just i wanted to make that point i agree i agree certainly and again i think we'll have continued discussions around this issue i appreciate that dr mann a lot because it is has been a

significant focus of the board and why the board asked for the literature review to begin with because although i will say as a lay person it is somewhat troubling to me the

[00:30:16] idea that we're requiring things that may have no bearing upon, you know, student outcome at the end of the day, although I would -- I'm still trying to reconcile, like we heard yesterday, Dr. Darling-Hammond talking about one of the predictors is, you know, or one of the elements of teacher effectiveness is content area knowledge. Here we have a test that, you know, measures content area knowledge, and yet we're saying, you know, through the the literature that there doesn't seem to be that correlation between you know

[00:30:50] cut scores and student outcomes I would I guess I would say that I think the literature review pointed out some of those weaknesses but also I would say that there seems to be inclusive inconclusive evidence regarding predictability I think the subject assessments were developed and you can help me do confirm that there's a level of subject area mastery but the correlation to effectiveness and then again as you mentioned to the student outcomes where there seems to be some mixed opinions I guess I would also

[00:31:26] emphasize that I believe the state and in my background in terms of teacher preparation the assessments are one point of data collection there's one tool that we use to demonstrate and meet the licensure requirements you know that the individuals that are finishing the alternate routes or finishing our traditional programs have multiple outcomes, including degrees, for example, as well as completing the other licensure requirements.

[00:31:54] So I would emphasize, and I agree with you, and I do think that there needs to be some continued discussion and exploration of other options in our state. But at this point, I would emphasize that this is one piece of evidence, I think, also. - Okay, we have a motion and a second.

[00:32:12] Do we have a motion? Not yet? No, we don't have a motion yet. Is there a motion? I think Mr. Swarn. I thought he did, yeah. No? Okay. I am clearly in another planet today. Okay. Is there a motion on this?

[00:32:27] To adopt item C? I so move, Mr. President. Thank you. Dr. Wilson, is there a second? Second. Thank you. Dr. Anderson, any other discussion? Ms. Gecker, I do have one question.

[00:32:44] For both C and D, you noted that the recommendation is below the panel's recommendation. And if I'm a member of the public and I'm hearing that and I'm not as aware of the process that's gotten us to this point, I may wonder why.

[00:33:01] I don't know if you can give us 30 to 45 seconds on why that might be the case. I know it's complicated, but if I was a member of the public and I wanted to have a quick answer to that, what's the answer? So quick answer would be the advisory board reviewed several other states during the presentation from Mr. McKinley during that process and so there is a mix across the country of identified cut scores some below and some at the recommendation based on the discussion the the individuals in

[00:33:37] the room that were teachers individuals that come from different backgrounds that actually have taken the assessments they recognized and the the colleges many of the university representatives indicated that these two math subject matter tests have been one or the most challenging for many of our graduates in the commonwealth and part of that barrier and moving to the next level even getting add-ons right adding on to their their original credentials and so the board felt at this point in time based on the

reviewing comparison across states in conjunction on on our borders around us as well as the need in our state

[00:34:16] that they wanted to at least try this lower benchmark and that there could be potential research and looking at the pass rates going forward to look for trends and then there would be an opportunity to adjust that in the future if we looked at data and saw that our candidates in Virginia were successful.

[00:34:34] So we looked at it as an opportunity to start off with this. It is a new assessment as well and so there will be some data we would look at moving forward to determine if there's some trends and patterns within our commonwealth within the state of virginia thank you yeah dr duran follow up on that so how does based on what you just said in terms of comparing to other states that the that they looked at the panel the board how do we compare with this new recommendation i may ask him what does that look like now if we were to approve this how would we compare with other states because you just said

[00:35:08] but that was a key factor in why people i recommend the board is recommending sure i've asked my my expert from ets just to give us a little reminder of that if you will sure um so with our multi-state standard setting process we pulled together a number of states to kind of participate in setting a standard for uh any of our exams so setting a standard for both the middle school as well as the mathematics test that's for 7th through 12th grade students and a part of that process as we pull together states from across across the nation they review our individual exams

[00:35:47] our test one one form of the test that we provide in our standard setting process and a recommendation is made many years ago states would conduct a standard setting study within their state maybe the last seven to ten years we've noticed more states participating in our multi-state process which allows for portability across state lines allows for a candidate who may be teaching in uh connecticut to come down to north carolina or over to virginia if they want at some point in their teaching career so a lot of states started participating in that multi-state process

[00:36:27] and began adopting scores similar to what came up from the recommendation. But if you look at licensure tests across the nation, it's really a state-level decision in terms of what score is most appropriate for their individual candidates.

[00:36:44] There are needs that are present in Virginia that are not present in South Carolina. So every state has to kind of work within their particular teacher's needs at any given time.

[00:37:02] I don't remember off the top of my head. I think you're asking specifically. Yeah, I'm asking specifically. Again, in your presentation, you did a lovely chart that I don't remember. Maybe Maggie has that as well. If you could just share with us where maybe North Carolina is, D.C.

[00:37:17] D.C. I'm really concerned to understand how would we be in comparison if we make this change. Are we going to be less than other states? Are we going to be more? Are we going to be in alignment? I mean, if we're in alignment with other states by doing this, I understand that. But I'm just a little concerned just not knowing that.

[00:37:33] So as an example here for the mathematics test that's on the agenda today, most states are going through a process of moving from the current exam to this newer test, and those who have adopted the newer version have a few range of scores here from 152 to 159.

[00:38:00] The majority of states have adopted at the 159 score point. Majority, but then excuse me if we're looking at I'm just gonna say out loud North Carolina's 159 What else is close to us? Mississippi is 152? Arkansas is 152. Yeah, I'm looking at below. So there's always a few states that Adopt at a different score depending on the needs of Delaware's at 152 as well, but I heard you correctly then everything you're listing we would be the lowest No, I'm sorry we mentioned maybe at least four or five that have identified 152 correct at this point

[00:38:39] Yes, correct for our recommendation for this one for the middle school was

[00:38:52] We have 152 for mathematics so we're at 152 So quite a few, but no, we are a match with quite a few other states at 152 for the mathematics.

[00:39:08] And then for middle school at. What is the score we are being recommended to adopt in item C? So item C, which is the middle school, we're at 150. And so there are Mississippi has 150.

[00:39:27] So we're not the lowest Arkansas. So you see a pattern has 150 as well. And then again, yes, the majority are at the 157 mark. but we would be not the lowest for the middle school at 150.

[00:39:44] - We would not be at the lowest, but the majority are at 157 and we're proposing 150 here. So we would be the lowest compared to the majority, not the lowest, but in the lower category. And the rationale for that again was, I guess I'm just struggling here why we would not be at least in alignment.

[00:40:02] I'm fine with trying to be in alignment with other states. I struggling a little to understand why we would go to be in the lower category. - Well, I think, again, based on the feedback and the discussion from individuals that actually have taken the test, they're concerned as well with the university faculty that express their concerns about people actually being successful and being turned away from the profession because they have been unsuccessful and that the content is such that on the test, right, it's even above what is typically taught in the mathematics programs and teacher prep programs.

[00:40:36] And so based on that feedback the need in our state for math instructors parent advocacy there also was concerned that we want to have a full-time licensed teacher that has the credentials to teach math in their school so the preference there was that they wanted to have a teacher with credentials with full license thank you for the explanation mr president ma'am yeah miss halton can i ask was the recommendation from our advisory board on teacher education and licensure was it unanimous yes and am i correct

[00:41:14] that abtel i'm sorry was that answer correct oh thank you one um it was not unanimous one person that was a principal right yes one principal dissented there are uh um it is a large board did a large advisory board and represents deans of higher education, parents, teachers, school board members, citizens, business community, superintendents, so my overwhelming majority recommended these cut scores.

[00:41:54] For what it's worth, Mr. President, this is, it feels fairly technical and outside of my expertise certainly but i feel like abtel is the right folks to give us good advice on this but perhaps we want to hear more from them as to their thinking about it sure and as i mentioned i think that this issue is one that we will continue to discuss and especially in aptel now we have our subcommittee actually looking at some of these bigger questions regarding licensure assessments in general um as you know we are looking at additional assessments that are coming forth

[00:42:32] right in the next couple of meetings there will be additional regeneration and changing of many tasks this this year and and did abtel have in front of them this literature review that basically throws into question whether there's any predictive value in the praxis scores at all in the subcommittee discussions yes but not the large group and the subcommittees we have been looking at this research and they welcome opportunities to consider other options in in our state, but again, just seeing this focus on math, we didn't think that we should, at this point in time,

[00:43:10] not move forward with this. - May I ask one more? On item D, what is the cut score that Abtel is recommending to us and how does that compare to other states? - So again, item D was the mathematics secondary and we're proposing 152, same pattern of there are, the majority are at 159 and then there's some that like ours are at 152.

[00:43:36] Again, Mississippi, Arkansas. - Delaware. - Delaware at 152. So same pattern with the states around math.

[00:43:52] - You know, from my perspective, I appreciate Apatel's work on this, but I'm really struck, I guess, by ETS's work on this, which seemed to suggest, what, 157 for item C. You know, I guess perhaps, Mr. McKinley, is it?

[00:44:15] - Yes, sir. - Yeah, I'm sorry. I didn't quite catch it when Joan introduced you before. I'm sorry about that. I mean, we have a review of your process, but I mean, can you give a brief explanation of why ETS thinks 157 is recommended here?

[00:44:33] - Well, as a part of our process, when we bring states together, we reach out to states and we ask them to share the names of individuals, whether it be K through 12 teachers whether it be faculty members from individual states that can sit on this committee.

[00:44:51] They go through some training over a three-day period and look at an individual form of the exam, looking at each individual question and having conversations around what questions seem to be easier versus those that are much more difficult versus those that have a moderate level of difficulty they eventually make judgments on that and a statistical process creates the cut score and then they have conversations around that particular cut score but as dr johnson mentioned

[00:45:28] this is just a recommendation especially when you're considering a new exam this is a recommendation of 157 or 160 or whatever it may be for an exam and each individual state has to assess whether that particular recommendation is appropriate for their individual population.

[00:45:49] I guess when you say that, though, what's appropriate for each individual population, you know, what are the factors that we are expected to consider there? You know, if this does in fact measure, you know, subject matter competence, you know, why would a state want less subject matter competence than more? I mean, are you suggesting that sort of the drive to have more teachers overcomes the, you know, the content mastery issue?

[00:46:23] No, that's not what I'm suggesting. Our licensure tests are by design focused on content knowledge. So that's the design of a licensure assessment in general. So when you...

[00:46:41] I guess I would respond from Abtel's perspective. Again, from Abtel's perspective, I think some of the bias in the assessment right that literature and research does present as well as some of the demand in our state i think trying to keep all of that in balance right being objective with having a need to have

some sort of standard assessment but then yet also realizing some of the research and concerns about standardized tests weigh into yes we want to maintain it but do we push for the higher top numbers when we know that there's some confounding variables with the test

[00:47:20] themselves what would those be often as the literature points out in terms of some their racial there's some research that talks about there's racial bias in some of the questions and challenges with standardized tests with various populations so some of the things that were pointed out in the literature review so would ets agree that the test is biased uh no we would I'm interested in hearing ETSs. I hope you've had an opportunity to review the literature

[00:47:57] review. I don't know if you have, but the quick summary of the literature review that our department did basically suggests that there's very little evidence that the tests have predictive value as to teacher success and does raise some questions about bias as well but i'm really more interested in the top line what does ets have to say about what what research do you have to answer that suggestion that there isn't much connection between success on the practice and success in the classroom i'm hoping and trusting you have some well what what

[00:48:31] i'll note is that licensure tests whether we're talking about from ets or from any other company in in the states here they were never designed to directly predict performance they were never ever designed to predict student outcomes in the classroom. Licensure tests are focused on the requisite level of knowledge and skills that a candidate needs in order to enter into the classroom. So as you think about over the last maybe 60 plus years, ETS has been

[00:49:08] working on licensure exams. The field continues to confirm that the content knowledge is what's most important. That's what the research tells us that content knowledge is extremely important.

[00:49:25] Obviously, pedagogical knowledge is also important. We've seen the field move from a focus on content knowledge to also including pedagogy, also including different types of assessments like performance assessments. So over the last 60 plus years, we started out with the national teacher exam, which has been transitioned into the practice program that we know today. And since that point, we have included innovative item types, which draw a little closer to higher

[00:49:59] level thinking and cognitive ability. We have created content knowledge for teaching item tests, which focus on the connection between content positioned in classroom settings, content positioned in task of teaching. So that drives a little closer at teacher effectiveness in the classroom. And also what you have noted in your board agenda items is the practice performance assessment for teachers. And that is a true performance assessment, task-oriented

[00:50:35] assessment that focuses on pulling out from a teacher candidate their thinking, their planning, their reflective practice, their ability to look at the individual student and the whole classroom, to look at the classroom setting, as well as the school and the community, and also look at their individual practice in order to be reflective in their thinking and then also to inform student learning. So that's where we are now in terms of our journey from licensure assessments to PBAT.

[00:51:15] Thank you for that explanation. And I think this circles back to the conversation we were having with Dr. Darling-Hammond yesterday and this idea of there's no one individual item that we should necessarily focus on in terms of defining student outcomes, but this board's concern about how each of the pieces fit together.

[00:51:43] so your explanation about content knowledge versus all of the pedagogical knowledge, student interaction, all of those things resonates with me. Ms. Johnson, a question. You mentioned -- I'm sorry, the other thing that I will note is a statement that among the board members, there were folks from higher ed who acknowledged that or suggested that the items on the new assessment are perhaps beyond what's being taught in teacher prep programs or something to that effect.

[00:52:21] The comment was in reference to the previous assessment. Okay. Okay. They've taken previous assessments. All right. I'll back that up then. We'll rewind that and take it back. Then go on then to my question. You mentioned the idea of coming back to or revisit the cut score.

[00:52:39] What has been our history of doing that? How often have we adjusted a cut score? how quickly have we adjusted a cut score um what's the thought behind that perhaps in this situation so as you know i'm new to this role but in the state and those maybe i don't know maggie if you're familiar but i can just speak to what i remember so i know the board has adjusted the cut score for the vcla which is we'll talk more about this year as well um and usually um that's with

[00:53:13] our no that's Pearson right yes so that's Pearson the test developer is responsible for that and I think in general the psychometric folks recommend that the test should be regenerated every five or so years anyway right from that perspective but in the state I know BCLA has the cut score has been changed we also did some work with trying to think the elementary cut scores for the elementary practices to assessments i remember those as well so again so we have done some but i always note

[00:53:52] that when as you all know when you develop an assessment right there could be some some bugs and concerns and so having some data over time to look at how our individuals in our state perform could help us more with really finding out is it a really good tool for us um and so we would we've discussed that with aptel we've discussed that actually he's brought some other data from previous assessments to give us some views as well for those discussions. So it has happened.

[00:54:21] And I'll just add, it's not uncommon for states to make those decisions to adopt at a certain level and then revisit after they actually have some data in the system. There have been states that have taken their passing scores and raised them. There have been states, many states, that have taken their passing scores and lowered them based on data that they've received. So it certainly is an uncommon practice i recognize that my request for a brief response led us into

[00:54:58] a long conversation and i apologize for that but um i was asking the question and i got i got the answer i needed but i was asking the question largely because of um what i might characterize as the optics of the recommendation and um and there are a couple of things that are troubling me at the moment um thank you for sharing how we stack up among the states i wish that we were a better company as that data was shared and i under i can understand why we are getting a

[00:55:34] recommendation directly from aptel to through the staff to the board without the state superintendent having the opportunity to provide a recommendation understand where we are with her transition when it appears to me that having the benefit of that professional judgment for the board would be appropriate as we are considering the recommendation i don't know if delaying the discussion further is going to be a non-starter or it's appropriate to do so but i i do not feel

[00:56:10] comfortable voting for it today much like uh i think doctor oh i'm sorry dr man yeah i i mean I was exactly along those lines. I feel like it is critical to appreciate just the perspective that was referenced

for a whole host of reasons that I think most of us are aware of. So I concur with that if this does not urgently need to be addressed today. Kind of piggybacking a little bit

[00:56:42] on Dr. Wilson's question. So how much data, if we were to approve this, and I'm not suggesting just yet that we did but how much data how what length of time would be appropriate for this to be revisited is there some standard i don't know if there's a standard is there standard from your perspective it depends on the state and how many candidates take an exam throughout a given year but usually states wait at least one year to have enough data in the system to revisit conversations and it may be two for us because there may not be enough in a year for middle school and math

[00:57:21] in our state because as we know there are not a lot of people taking the test but we do we do know what minimum amount of people we would what threshold we want to get to i would rely on their expertise um for that in terms of comparisons of other studies it just seems like there is some number of of of data points we'd want to have before we got one back to the table so i'm just curious if and i understand getting to that period might be a year might be two years but i just didn't if we knew what that was right if if if we could have maybe more than a hundred folks in the system

[00:57:56] you can make some some claims on those data but if in any given year with an academic discipline if you have 20 or 30 students it's really not enough data in the system in order to make any kind of generalizations and then one last question as the as the panel reviewed this and came to a conclusion was was 150 kind of like the i won't say immediate conclusion was was there any debate that it said 152 and we talked ourselves down or was it was there any yes was there any

[00:58:34] other common number that was being thrown around i'm just curious that there was debate um but no there were no other numbers thrown around it was either the recommendation from the multi-state standard setting or the one below. And I think part of that is because that has been the practice also to look at the one standard below or above and make those determinations.

[00:58:59] Dr. President. Dr. Johnson, recognizing that our new superintendent not only is not able to be with us at the moment but also is nine days into the job and presumably hasn't had an opportunity to study this issue yet, would there be any harm in waiting until uh march to act on this item no i think um the new as i said um the dates of regeneration start um later in the summer if i'm not mistaken so we have time but as i mentioned there are multiple

[00:59:35] items that we've been waiting for to bring forward because of some of these concerns and i think we're okay with all of them i think the way we planned and scheduled that presentation we have time before it will impact our state in those and access to those tests so it actually held some because of some of the discussions we had today i think are larger than you know this one test to be honest with you dr man last comment on this i i think um you know i'm i i was

[01:00:11] reflecting on miss holton's reference of all of the stakeholders that participate or have participated in the process. And it's striking to me that when you really hear that we have parents, we have teachers, we have principals, we have people who feel that we're failing because we're not able to have teachers who are licensed in subject matter today. And it makes me wonder,

[01:00:47] And I know we post the higher ed conversation, there was some unwinding of that per the comment that Dr. Wilson was maybe going to go down this path. But I feel as if when we come back to this subject, and I don't know if it's possible to really understand, but I am stunned by trying to appreciate

what has to change in higher ed to help address this issue. Because this is not just an issue of the individual you know and i don't know what kind of data we have access to to

[01:01:24] appreciate what is or isn't happening to elevate the preparation experience such that when it is time to sit for such exams people can do that and i think that worries me more than anything we tend to focus a lot on who's not getting through but i ask the question how are our teacher prep programs evolving to help ensure that we can have qualified personnel to teach our children? Because I can

[01:01:59] understand as a parent, today, I want my child to have access to a licensed teacher with that expertise, but we don't have that. And so we have people trying to think about ways to make it easier to hopefully get to that by using a different bar or threshold. But we have to really wrestle with those issues too as we try and and do the work of approving things as we need to so I just it is it is a quandary that we have to we have to create space to

[01:02:38] try and understand and again I will emphasize that this assessment is only one measure and one indication of demonstration that they have the subject matter because they'll have a master's degree potentially or they have an undergraduate degree potentially right that maybe they have a 4.0 and the You know, the higher ed institutions are recommending them after knowing them for two to four years.

[01:03:01] And so the assessment is one indicator that they are meeting that subject matter. That's what we're going to look for anyway. Yeah. Okay. I think we appreciate the conversation.

[01:03:19] Thank you. Thank you all. If, you know, if I were doing this alone, honestly, I don't think I could possibly vote for the lower scores at this time. think it's i would go with the ets recommended scores uh you know i think to part of dr mann's point you know we need to look back at why we can't get what we need to get from uh you know in terms of the talent pool uh and there's a lot of reasons for that right but it's you know that

[01:03:49] does bear some you know study but in terms of the standards for the commonwealth you know it seems to me that you know we ought to be no less than the recommended standard here as a measure of subject matter competency or mastery and so i think uh i heard some sentiment that we wait for the superintendent to weigh in on this in her professional opinion although as i said i would be content to go forward with this with both these items at the recommended scores if there were

[01:04:30] you know some indication from the board that they wanted to do that or like i said i'm equally content to defer until march um i'm you know honestly dr robertson i understand the concern for the optics uh you know i am candidly just personally not as concerned about the optics i mean we've done other things that you know i know you optically have not looked right but we felt we were on solid ground if i felt we were on solid ground going for the lower numbers here

[01:05:05] you know, the lower cut scores, I would be content to do it, understanding that the optics would be what they are. Here, though, you know, like I said, I just don't see this, and I appreciate the literature review. You know, if I did anything, again, if we did anything, to me, it would be, you know, I think Massachusetts, it was, based upon that literature, actually adopted the higher score, and then legislatively lowered it for a period of time to increase the number of professionals professionals, you know, math professionals in the profession.

[01:05:42] So if I were to do this, you know, to achieve the goal that, you know, you're trying to achieve, it would be still to adopt the higher and then perhaps discuss a temporary lowering of it for conditional

licensing or something else as opposed to starting at the lower number and then having to come back and say, you know, we're going to try to move it up.

[01:06:05] a lot of comments if we could do this is the desire to move the item through or to defer the item till march dr wilson you had the motion so yeah so i i'm happy to withdraw the motion but i would rather defer and i do think the uh idea perhaps you know the president that you just described in terms of you know a way to accommodate is one that warrants more discussion i think and I think probably has some bearing on staff.

[01:06:42] And so I'd like to understand what that looks and feels like. But that kind of thinking would be useful to hear more on. Okay. So we have a withdrawn motion. I assume the second's withdrawn. And I'm going to use my, you know, prerogative as chair to defer the item until March.

[01:06:59] Okay. Thank you. Thank you all very much. And we appreciate your coming down from Jersey. You know, I'm a Jersey native. And it was, you know, I think we did you a favor rather than inconvenience you having you come on down here.

[01:07:18] No, I know. No, I still love my home state. So just for clarity, coming back in March, given the superintendent some time to review the content, you asked for some additional understanding of impact and alternative options you might have on the department.

[01:07:44] Is there any other thing, anything else we think we need that would change our decision? Because all I'm hearing right now really is, which is important, what does the superintendent think, is that really going to change? Do we need more information or another recommendation?

[01:08:02] Honestly, I think the answer is no, and I know where you're headed. However, I think out of courtesy to the superintendent of public instruction, you know, this is an area that she ought to have the opportunity to weigh in on. Well, if I may suggest, certainly we can invite more public comment on it, and I hope our conversation today, the higher ed community and/or others may choose to weigh in. But also, we could ask ABTEL if they wanted to send us a more detailed explanation for their recommendation.

[01:08:38] We would certainly be happy to consider that. Good idea. Mr. Gecker, I think in response to the question about more information i think sharing with the superintendent the discussion we just had about starting high rather than starting low um expressing that there's some sentiment about that there may be sentiment the other way as well but um i believe it gives her the opportunity to look at a range of options that would be useful to consider okay um so we're

[01:09:12] deferring till large all right out of me thank you dr johnson uh first review of the proposed provisions to the regs governing secondary school transcripts dr hollins good morning president gecker wonderful to see you all as well happy new year to you vice president wilson and members of the board i'm dr samantha marsh hollins assistant superintendent of special education student services and it's my pleasure to be with you this morning to present to you the first review of proposed revisions to the regulations governing secondary school transcripts your boilerplate is relatively straightforward and as a reminder the last full version of the regulations were approved

[01:09:51] by the board in 2007 and changes in professional practice at post-secondary institutions in business and industry necessitated these revisions to the regs in may 2019 a group consisting of representatives from across multiple stakeholder organizations including parent representation professional educators as well as stakeholders from the field was convened to discuss important issues

around high school transcripts and provide suggestions for these proposed revisions Further feedback was provided through a questionnaire from Institutes of Higher Education.

[01:10:22] The NORA, the Notice of Intent for Regulatory Action, was approved by the board at your January, excuse me, your July 25th, 2019 meeting. It was published for public comment on September 16th, 2019 and closed on October 16th of that same year. There were no public comments received through town hall or submitted through the board's email address. The regulations were accepted for first review by the board in January of 2020 and one revision was made as a result of board feedback and the proposed revisions were then submitted to the executive branch review pursuant to the administrative process act as a reminder we're now at the juncture of that act for the first and final review and so our ability to offer feedback is pretty limited based on what we've received from

[01:11:00] the field as far as public comments and any additions that are more technical in nature there were six public comment submissions through town hall and i provide an explanation of those types of comments reviewed and the resulting minor technical edits or clarification that i and my staff have been provided to the folks that commented.

[01:11:18] These edits will provide clarity and consistency to school divisions and post-secondary institutions as well as align with the language and the standards of accreditation and the proposed revisions will better serve the students of the Commonwealth by aligning elements contained in the student transcript to the needs and demands of post-secondary partners.

[01:11:35] If you would allow me to, I would like to recommend that the Board of Education receive for first review the final stage of these proposed revisions to the regulations governing secondary school transcripts and i'm happy to answer any questions are there any questions thank you for the presentation i don't see any so the board is delighted to accept this on first review thanks thank you so much thank you okay adam f first review of proposed revisions to the guidelines for uniform performance standards and evaluation criteria for principals and

[01:12:06] superintendents dr strong and dr johnson thanks good morning again technical sorry question the last one in our agenda says final review but then i heard first review is that just an error I think the first published agenda was incorrect in that regard. It's been fixed on the website.

[01:12:28] On the website. Okay. Thank you. Good. Good morning again. Good morning. President Gecker, Vice President Wilson, board members. I'd like to share for first review the proposed revisions to the guidelines for uniform performance standards and evaluation criteria for principals and superintendents. For again, I'd like to acknowledge and thank those that participated in the work group responsible for this development as well as miss amy griffin an educational consultant who's with us today as well and working with the department and dr strong and associates

[01:13:05] who you'll hear from later shortly for facilitating this process prior to my tenure with the department as you're aware with the presentation today we begin the final phase use these final stages of phase two of the three-phase plan to revise the guidelines for uniform performance standards and evaluation criteria for teachers as a reminder phase two is intended as a bridge between the current and future teacher performance evaluation the major revisions in the guidelines in phase two is the creation of the new performance standard the culturally responsive teaching and

[01:13:41] equitable practices the establishment of this performance standard addresses house bill 1904 identical to senate bill 1196 passed by the 2021 general assembly requiring the evaluation shall be included and include the cultural competences a little bit of background information the current guidelines for uniform performance standards and evaluation criteria for principals and superintendents originally was approved on february 23rd 2012 for principals and september

[01:14:15] 27th 2012 for the superintendents with both subsequently revised on july 23 2015 and most recent january 10 2020 work groups were convened in 2021 to excuse me comprehensively review the guidelines for uniform performance standards and evaluation criteria for principals and superintendents the department of education engaged dr strong and strong associates educational consulting to facilitate that work as an outcome you find today detached documents

[01:14:53] including guidelines for performance standards and evaluation criteria for principal and superintendents in addition attached are strikethrough and underlined versions of the guidelines for uniform performance standards and evaluation criteria for principals and students superintendents that outlines the proposed revisions to the document and we have today a privilege of having Dr. Strong with us and I'll ask him now to provide some additional details and review the process and major revisions to those guidelines. Dr. Strong. Thank you, Dr. Johnson.

[01:15:28] Good morning, President Gecker, Vice President Wilson, board members. It's a pleasure to be with you. I think we have a presentation with slides that I, with your permission, I will move through fairly quickly and in the interest of time and allow for the short minutes that I have with you to be devoted to any questions or comments that you might have. So if I go too quickly, please feel free to let me know to pause. I do want to acknowledge the excellent work that was done by

[01:16:04] the appointed state work groups for both the principal guidelines for performance standards and evaluation as well as the superintendent group. You can see in front of you the principal group is well represented by the associations from across the state with whom we've worked previously.

[01:16:24] Many practitioners were here so that there is both a research practice perspective for a footprint and how the evaluation is to be designed and implemented. The same is true for the superintendent group.

[01:16:41] Both work groups were supported by guidance from the Department of Education with representatives, including Dr. Johnson, who were actively involved, and individuals with my consulting group. Dr. Jenny Tonneson was a key individual with whom we've worked, and she's present with us today.

[01:17:02] So if you ask any easy questions, I'm happy to respond. If not, I'll defer. So thank you to the work groups. As you well know, from last year when you reviewed and adopted the revised teacher guidelines, we made a number of changes that included a new standard moving from seven performance standards to eight.

[01:17:29] The new standard was labeled standard six that relates to equity and cultural competence. We mirrored those changes in both the principal and the superintendent evaluation changes.

[01:17:45] We added new material to the uniform guidelines, specifically one area on growth and improvement, which reflects very closely to the conversation you were having with Linda Darling-Hammond yesterday. The purpose for any evaluation, whether it be principal, superintendent, teacher, anyone in our profession, is very simple.

[01:18:07] There are two purposes of good evaluation. one is growth and number two is growth. It's that simple. When teachers get better, when principals get better, kids get better. And that's the bottom line. That is the only reason to have an evaluation system. We also included a technical point on what the local school divisions are allowed to modify.

[01:18:31] There was a lack of clarity when we conducted a statewide survey on teacher evaluation last year regarding what can and cannot be used what is required so we included a section in the uniform guidelines for all three teachers and the two that are now proposed before you the superintendent and principal standards to clarify what is required of local school divisions and areas where they have the fluency and flexibility to make the changes that they would desire

[01:19:04] we change the rubrics that are used to represent what can be considered a continuum of effectiveness which supports movement for employees for individuals to move from effective to highly effective or from partially effective to effective so that it isn't static if an individual if i'm a new teacher or new principal and i should be assessed on one of the standards this year is partially effective that doesn't mean i have to live and breathe there for the rest of my life doesn't mean i'm tattooed as partially effective the intent is growth and improvement when

[01:19:41] principals get better when teachers get better when superintendents get better kids benefit and that's the bottom line for this evaluation system there are uh there's a language change in the ratings you're familiar with those already but i'll just state them as highly we move from the former system to one that's more behaviorally anchored with effective, highly effective, approaching effective, or ineffective. Forms have been revised to reflect those as well as reflect an emphasis on growth and improvement. For example, while we're not here to review the

[01:20:21] teacher system today, we changed, and what you adopted, an observation form to be a formative feedback form. It's all about feedback. Tell me now what I can do to improve and get better. Help me get better. And then that will have a lasting impact on children. That's our philosophy.

[01:20:43] That's everything that has guided the work of these two work groups. Everything that my team has brought to the table for this. There is one substantial change that you're well aware of that was brought about by new state legislation from last year, and that is to have a standard in teacher, principal, and superintendent evaluation related to culturally responsive and equitable leadership or practices. For teachers, it would be teaching practices in leadership for principals and superintendents. This is the new standard that's proposed for

[01:21:23] principals. The standard, if adopted, would be required of school divisions along with the other, the existing seven standards. The indicators underneath it are optional. They can be considered look-fors. They're built on the best research and practice that we can identify. I've had the opportunity to work with many other states in designing evaluation, looking at the research,

[01:21:52] And always, always, what I try to do is to make certain that we have research-based practices that guide or research empirical evidence that will guide practice. I will say on the new Standard 6 that the wording was initially developed by the Department of Education Office of Equity and then was thoroughly reviewed and vetted by the state work group.

[01:22:23] That's true for the principal, standard, and related indicators, and related scoring rubric, as well as for the superintendent. The indicators continue. These indicators, 6.5, 6.6, et cetera, are the ones

that can be modified by a local school division.

[01:22:42] The standard itself would be required of the school division. The superintendent system follows the same model. In fact, we have worked diligently to make certain that all three of these systems speak the same language, follow a similar format, so that we don't roll out three different evaluation systems in Virginia.

[01:23:04] That it is one system that is understood at all of its levels in order to accommodate all the aspects of teacher growth. That is the new standard on, and I'm simply glossing over it here, so pardon me for doing so in terms of the actual details.

[01:23:26] I'm certainly not going to read those to you. Evaluation, in closing, let me say that evaluation is merely one part of a quality teacher, leader, superintendent, effectiveness system. Who we hire becomes vitally important.

[01:23:44] The same standards that guide how we evaluate should likely guide how we hire, how we develop, how we support, how we keep. You talked quite a bit yesterday in your work session about systemic connectivity, and that is so vitally important.

[01:24:02] Evaluation alone is not going to solve the problems that we have in Virginia. Also recognize, though, at least I have a perspective of working internationally with many schools in different countries and across many states.

[01:24:18] Virginia does many things very well. So while we're looking for improvement, recognize that you start with a foundation of quality in many respects. Can we be better? We have to be better. And we can be better. I see that there are three fundamental questions that are before any state, any school district that's going to work on evaluation.

[01:24:41] Number one, or any systemic reform. Number one, why are you doing it? And that's essential to grapple with. I've already expressed what my absolute philosophy is. If children aren't better at the end of the day, why are you doing it? We can answer the why question.

[01:24:58] The how question is codified in guidelines. Dr. Darling-Hammond mentioned that it's fairly thick yesterday. It is, because it covers everything from beginning to end. It doesn't mean that every school and every teacher needs to use that.

[01:25:14] In fact, when we roll this out with teachers in training beginning next month, we will have an abbreviated version. Teachers want to know what they need to know. They don't want 100 pages. They want to know the part that's important to them. And that, and in other states, we've even emphasized a very short version of what teachers need to know.

[01:25:33] the codification of this is what you're reviewing today in this draft. We know how to do the why, the what. The third question is the one that I think ultimately relates to your big issue from yesterday and that I think is the driver for any state in any educational unit that wants to go forward, and that's how. How are you going to do it? President Gecker, you asked that question near the end of the session, the work session yesterday, how are we going to do this? And this

[01:26:09] is the place where I don't think that with my work with Virginia in 2000 and in 2012, that we had sufficient follow-through on doing the how. There was not sufficient support and follow-through on training. One-shot training, I will absolutely mirror what Linda Darling-Hammond said yesterday, one-

shot training will not suffice. It will not move the mark. Evaluation is only one part. The big picture is do we have better teachers? Do we have successful teachers that we can keep? Do we have successful principals? It takes three to five years to change a school. There's research that

[01:26:48] shows the quickest way to turn around a school for good or bad is to change the principal. We have to keep good principals in our buildings. World-class schools have world-class principals schools and world-class school divisions have the best superintendents that we can possibly place in those positions. That's all this evaluation should be about, is supporting that framework for getting and supporting and keeping the best people. So let me stop with those comments and happily -- and open to any comments or questions that you might have that I might be able to answer.

[01:27:26] I appreciate the presentation, Dr. Strong, very much. Are there any questions by board members? I'm not actually seeing any, so I guess that's an indication of just how thorough you were with the presentation.

[01:27:45] Or how confusing. No, no, I don't think so. I think. Thank you. I think even what we've done in the last couple of days, you know, between the presentation you referenced and today, you know, we are beginning to move down a path toward the systemic change that I think we want to see here. And I'm happy you noted we do a lot of things well here. You know, sometimes, you know, we get lost in what we're not doing well.

[01:28:09] Clearly every system's got room for improvement, and, you know, but we start from a pretty good place. So thank you for your work on this. My pleasure. Again, thank you so much for receiving the presentation, and we ask that you receive first for first review the proposed revisions to the guidelines for uniform performance standards and evaluation criteria for principals and superintendents yep we are doing that right now thank you uh and i guess dr johnson you are

[01:28:36] next also with g okay thank you for your patience item g yes first review of aptel's recommendation to approve uh new education endorsement programs yes due to many staff transitions and changes the process for program review has been greatly delayed and so today we'll be bringing forth

[01:29:13] some items for the board for first time probably in several months and there will be additional items being brought in the future as well across your next couple of meetings many of which represent the new education major so i want to highlight and ensure that they are brought to your attention as a reminder virginia institutions of higher ed requests to add new endorsement programs must be approved by the virginia board of education as required by the regulations governing the review and approval of education programs in virginia requests for new programs must be submitted

[01:29:47] annually by march 31st program specialist at the virginia department of education reviewed the request for the new endorsement programs program endorsement competencies based on the regulations governing the review and approval of programs in virginia were verified through the review of course descriptions syllabi as well as alignment and documentation clinical experiences and establish partnerships a review of the request for new endorsement programs applications submitted by the institution evidence written documentation of school demand as well as institutional and

[01:30:23] school division support for the programs provided on november 15 2021 the advisory board of teacher education and licensure recommended that the board grant approval for the new endorsement programs listed in the item today including avery university three add-ons in special education at k-6 6-8 6-

12 james madison university special education add-ons as well k-6 6-8 and 6-12 old dominion university middle school 6-8 science only radford university early childhood

[01:31:01] for three to four year olds and university of lynchburg early childhood university of richmond dance art pre-k through 12 theater arts and visual arts and virginia commonwealth university special education early childhood birth through age five and finally virginia tech career and technical education for business and information technology career technical education for marketing education and i would highlight in the past there's precedent that i'm requesting that the board wave first review and approve aptel's recommendation based on the presentation today

[01:31:40] Are there any questions? - Any questions? I don't see any. We're going to do this in two motions because of this conflict potentially. First, can I have a motion to wave first review and approve the new endorsement programs outlined in item G with the exception of the University of Richmond endorsement programs?

[01:31:59] - So moved, Mr. President. - Thank you, Dr. Deronis. There's a second. Thank you, Dr. Robertson. I don't see any discussion. All in favor, say aye. - Aye. - Any opposed? That carries. And then second motion, can I have a motion to wave first review approve the new endorsement programs outlined in item g for the university of richmond i know this one may be tougher but so moved thank you dr duran uh dr mann uh all in favor hi thank you and uh yes dr wilson recuses uh item h i uh i'm going to declare a conflict on and recuse myself i own

[01:32:35] interest in real property which is leased to henrico county public schools and uh therefore dr wilson thank you you've got the gavel dr albon thank you very much for being here you have the overview of the item for us please absolutely good morning vice president wilson members of the board of education i am dr brandon albon director of the office of stem and innovation and it is under innovation that i come to you this morning house bill 1981 of 2017 directs the

[01:33:13] the Virginia Board of Education to develop regulations for the designation of School Divisions of Innovation, SDI. To be eligible for designation, the local school board would submit a locally approved plan of innovation to the Virginia Board of Education using criteria as presented in the regulations. Upon being designated as an SDI, not only can that division have a sense of pride. They are also asked to act as a laboratory of innovation and to share their unique programs and solutions in order that across the Commonwealth, school

[01:33:52] divisions can learn within a vast professional learning community. An SDI designation also provides for the ability to request flexibilities from certain regulatory provisions and is permitted to adopt alternative policies for school administrators, teachers, staff to meet the diverse needs of students these flexibilities may only be under the purview of the virginia board of education's regulations and not in lieu of any federal mandate nor code of

[01:34:27] virginia requirements in 2020 the board of edu the board of education approved the designation of sdi for henrico county public schools along with 14 other school divisions the goals and objectives of the Henrico application include: empowering student agency by using real-time data and formative feedback to share and act upon their learning; and two, to utilize a portfolio platform to increase student participation in opportunities to enhance their preparation for

[01:35:03] college, career and citizenship. At the time of designation, Henrico did not request any flexibilities to board requirements as you will see in the attached letter in your board documents Henrico has now requested flexibility to apply alternative practices for the requirement that students take the standards of learning assessment or complete the Virginia alternative assessment program in Virginia studies civics and economics and grade 8 writing such that their local alternative

[01:35:39] assessments, including performance assessments, may be used in lieu of the SOL assessment and the VAP in each of these content areas. This request is very much in line with the requests for flexibilities previously granted to Stanton City, Fairfax County, and Fauquier County in the September 2021 Board of Education meeting. This flexibility, if approved, will be in effect for the remainder of the Henrico SDI designation for the 22-23, 23-24 and 24-25 school years.

[01:36:18] As is the case with other flexibilities granted to SDI designees, Henrico will be required to submit an annual report updating the department and the board of how the components in their innovation plan is going, which includes how they are measuring the beneficial success of the flexibility that is granted to them.

[01:36:42] At this time, staff recommends waiving first review and accepting the request to approve the flexibility for Henrico County Public Schools. Thank you for your consideration of this request. And at this time, does anyone have any questions?

[01:36:58] Thank you, Dr. Alban. Any questions from board members? Ms. Holton? Clarification, are you asking that we waive first review? I missed that. Yes, ma'am. Okay, thank you. Any other questions? Seeing none, is there a motion to waive first review and approve the flexibility requested by Henrico County Public Schools?

[01:37:22] Dr. Robertson, second. Dr. Mann, all in favor? - Aye. - Any opposed? That motion carries. Dr. Albon, thank you very much. - Thank you. - President Gecker, I gladly return the gavel to you. - You can keep going. We have a real one.

[01:37:40] - At this time, I'm going to welcome Ms. Vanessa Wiegand, the coordinator of health, PE, driver education, and family life, to the podium. Great. Good morning.

[01:37:58] Good morning, President Gecker, Vice President Wilson, esteemed members of the board. I am delighted to present today for first review the proposed health education standards of learning curriculum framework. I would like to take this opportunity to thank Dr. Danny Almereud, health and physical education specialist, Dr. Elizabeth Payne, Family Life Education Specialist, and Sheila Jones, the Health and Physical Education Program Coordinator for Virginia Beach City Public Schools, as they spent countless hours facilitating the review process.

[01:38:34] I would also like to thank all of the educators, administrators, curriculum supervisors, and subject matter experts whose collaborative contributions played a significant role in creating the curriculum framework, which serves as a companion document to the 2020 Health Education Standards of Learning.

[01:39:01] The proposed curriculum framework not only amplifies the standards, it delineates in greater specificity the minimum content that teachers should teach and all students should learn. The proposed framework also includes legislative action taken by the 2021 General Assembly that directs the Board of

Education to include advanced directive education and its curriculum framework for the health education standards of learning for high school students.

[01:39:31] The format for the proposed health education standards of learning curriculum framework is designed to facilitate teacher planning by identifying the key concepts, knowledge and skills that each student should know and be able to demonstrate for each standard.

[01:39:47] The curriculum framework is further divided into two columns, understanding the standard essential knowledge and skills. The standards of learning for each grade level are also grouped into three content strands: essential health concepts, healthy decisions, and advocacy and health promotion. The health education standards of learning are further subdivided into topics that include body systems, nutrition, physical health, disease prevention and health promotion,

[01:40:22] substance abuse prevention, safety and injury prevention, mental wellness and social and emotional skills, violence prevention, and community and environmental health. In addition to reflecting changes in state law and current research on effective practice, the proposed curriculum framework also includes scaffolding health skills to be developmentally appropriate across grade levels and explicit of what students should know, understand, and be able to do, organizing health content and skills by strand and topic to show vertical alignment and to support

[01:41:01] teacher instruction and student learning, focusing on the importance of obtaining and maintaining physical, mental, social, and emotional health, increasing understanding of mental illnesses and treatments, decreasing stigma related to mental health, enhancing help-seeking efficacy and promoting self-care, supporting the development of essential questions, skills-based health instruction, and deeper learning, enhancing content and skills related to preventing vaping,

[01:41:37] opioid, and cannabis use, explicitly integrating the five Cs, providing opportunities to explore health careers and job opportunities, acquiring essential skills to manage health challenges facing youth today with the ultimate goal for every child to live a healthy life. Staff recommends the Board of Education receive the proposed health education standards of learning curriculum framework refers for you today.

[01:42:07] Thanks. Thank you so much. Are there any questions? Dr. Wilson. Nice to see you, Ms. Wiggin. The material that we have is not a strikethrough version, so there have been... So this is new content, and the 2021 General Assembly... Yeah, so I see 20 and I see 22.

[01:42:37] Great. I'm good. Thank you. Yeah. It resulted from legislation. Anybody else? If not, an indicator of how complete the presentation was. Thank you.

[01:42:52] The board accepts that on first review. Are you also doing then item J? - Yes, I appreciate the opportunity to share the proposed physical education standards of learning today for first review. Once again, I'd like to thank Dr. Dani Elmerod and provide sincere gratitude to Sheila Jones for her exceptional leadership throughout the review process.

[01:43:18] The 2015 physical education standards of learning were reviewed and refined through numerous phases the virtual meetings convened, with K-12 educators representing all regions of the state, college professors representing 14 institutions of higher education, and other passionate stakeholders representing the expertise of many other constituents.

[01:43:42] The room focused on the goals of the standards, which are to equip students with the knowledge and skills necessary to acquire, interpret, and understand physical education concepts, and apply a wide range of skills needed to improve health and prevent and control chronic disease, to acquire and practice effective communication, social awareness, self-management, collaboration, and stress management skills, to engage in home, school, and community projects that enhance physical,

[01:44:20] mental, social, and emotional health, and to explore health science career opportunities in education, sport and exercise science, biomechanics, rehabilitation, coaching, fitness, and community health management.

[01:44:38] The proposed physical education standards of learning also enhance clarity, specificity, rigor, and alignment of skills and content. They reflect academic research and practice, and they emphasize the profile of the graduate life readiness skills inherent in quality physical education programs.

[01:44:59] They also further align the sequencing of fundamental skill acquisition within the motor skill development strand. They expand social development strand to embrace the social and emotional development, emphasizing inclusion, shared responsibility, and supportive and challenging experiences for all students.

[01:45:21] They separate eye, hand, gross, and fine motor coordination skills from eye, foot skills into discrete standards to promote mastery, They enhanced the energy balance strand to reflect updates and research, and they scaffold the instructional content for the fitness planning strand to support instructional practices that inform an incremental improvement approach to personalized learning.

[01:45:49] Public hearings on the proposed physical education standards of learning will be held on February 8th at 5:30 p.m. and on February 16th at 7:30 p.m. It is anticipated that the proposed standards will come back to the board in March for final review and adoption.

[01:46:09] Staff recommends the Board of Education receive the proposed physical education standards of learning for first review. Thank you. Thank you. Are there any questions? I don't see any, so the board is happy to take that on first review. Thank you.

[01:46:25] All right. We've been going about two hours, and so I think we're going to do a break, but before Before we do that, I'd just like to welcome the new, still new, Superintendent of Public Instruction for the Commonwealth of Virginia, Jillian Bailo.

[01:46:40] The reason she was not here previously is she was up at the General Assembly doing the other part of her job, dealing with the legislature. Ms. Bailo comes to us from Wyoming, where she was elected State Superintendent of Public Instruction in 2014 and re-elected in 2018.

[01:46:56] Mrs. Bailo began her career as a classroom teacher in Wyoming. In addition to teaching, she has consulted in the private sector, served in the Wyoming Department of Family Services, and a policy advisor to Wyoming Governor Matt Mead. Mrs. Balo's husband is a school principal.

[01:47:12] They have two children and one granddaughter. Would you like to say a few words? I know you're probably just coming down off the hill. Well, for starters, the literacy bill passed unanimously from both the House and the Senate Committee.

[01:47:32] It was worth the wait, but I am sorry that I missed part of the meeting and incredibly sad that I missed the teachers of the year. So I'm going to try to catch up with them a little bit later. Otherwise, I will

owe a few visits out in the Commonwealth.

[01:47:50] President Gecker and members of the State Board of Education, it's a pleasure to serve as your secretary and to be part of the discussion and part of the important decisions that you all are responsible for making. I'm day 12 as a Virginian now and day eight on this job.

[01:48:11] There's so much to learn. However, after serving in this role, similarly in Wyoming, I will say that even after seven years of serving, many days still feel like day number one. And I think that's one of the best parts about leading in education. There are so many opportunities to positively impact what happens in in our state in our schools in the decisions that we all make as policymakers I take that very very seriously and not only enjoy that

[01:48:46] challenge but also enjoy enjoy that it's not just me making decisions it's all of us and and and we have so much in common with respect to making sure that every student has as many opportunities as possible to succeed and making sure that there's engagement at every level to to move that ultimate agenda of student success forward so again I'm mr. president thank you so much for the warm welcome to the board and to the Commonwealth thank you and the board

[01:49:20] will come back at you know 11:10 where we will just take a quick recess to get

[02:00:38] started again item K first review of fast-track action for legislative mandate to regs governing the operation of private schools for students with disabilities mr. chairman present gecker vice president Wilson members of the board superintendent baylow despite the name what we have here is a representation of an item from the September 23rd 2021 board meeting that item you may recall was in response to item 138 I of the budget bill which required the board to establish standards for restraint in seclusion in private special education

[02:01:15] day schools that are the same as the standards for restraint and seclusion in public schools the september action was presented as an exempt action for which the standard is that the agency does not exercise discretion after consultation with our wonderful assistant attorney general miss susan williams it was determined that the action as drafted did in fact exercise agency discretion and although we never want an action like this to come back before the board we do think that this is a small victory for the process in order to guarantee compliance with Virginia law and certainly transparency with the

[02:01:52] public and government processes so the current action has is as represented has been vetted in consultation with the Office of the Attorney General and is being changed to a fast-track item for which the standard is that the the item is non-controversial and despite the uncertainties of what that word might mean we think that this will qualify since we do have legislative cover we are certainly grateful for all the work that Miss Williams has put in and to borrow a phrase popular in the General Assembly right now we believe that we have peace in the valley we're asking for you to waive first review and approve

[02:02:30] this as a fast-track item today so that we can comply with the legislative mandate i am more than happy to answer any questions that the board might have okay are there any questions come on this can't be a completely uh a time of non-divisiveness come on all right i don't see any questions is there a motion away first review and adopt this action thank you dr wilson and dr duran did i hear you second thanks all in favor signify by saying aye

[02:03:03] any opposed there we go thank you all right uh items l through o yes are written reports are there any questions we have staff people here if there are any uh if i may not not so much our question is

just a a well maybe a comment and a request that the report on um oh and actually there were two of them i wanted to come on if i may the virginia school survey of climate and working

[02:03:37] conditions. I think I'm right that this is our final, finally our first statewide iteration of that survey. Am I right about that? So that is a question. Thank you. And it's something we've been working towards for a good long while.

[02:03:54] Hi, members of the board. For those of you that are new, I'm Jen Pagarinna. I'm the director for research here at the Department of Education. So this is the first time that we have administered this survey jointly with the Department of Criminal Justice Services. So it does reflect quite a new effort for the state to go out with a coordinated survey that both covers teacher and staff working conditions as well as student school climate issues.

[02:04:21] And I found that I was very impressed with, if I understood correctly, the response rate. And I will say I haven't read every word of it, but the high response rates among students and faculty, despite the fact that it was administered last spring.

[02:04:40] Yeah, January through March, which was a time of a lot of change for school divisions as well, as they were moving to in-person learning. So we do greatly appreciate the support of the schools and the division staff for helping us with that. And it reflected, I was surprised to see really high levels of student satisfaction, high levels of teacher satisfaction, higher than I would have expected. I guess I would really love, if we can find Tom on a future agenda, to see a more thorough report, and I would love to hear it compared

[02:05:14] to past surveys to the extent it is comparable and/or to the national teachers' principal survey data, if that is possible. Just help us understand where we are. I mean, even the question very relevant to our concerns about teacher shortages, the teachers surveyed were not all predicting that they were going to be part of the great resignation. What can we learn from it? If there's time on a future agenda, and I know we're always juggling for time, but I would love to hear a more thorough presentation on it and encourage us, and in

[02:05:51] the meanwhile, encourage us all to take a look. So thank you. And I did have one other item please um on the yes please will it happen again that way uh this year and in the same way because i think your point about the comparison and sort of appreciating that and how long does you usually take to sort of distill the data and i appreciated the executive summary yeah absolutely so it is happening now so we started the administration of the survey the january 10th if it runs through about the middle of March, and so we are doing that survey again.

[02:06:27] We typically provide data back to schools and divisions by close to the end of March, kind of April timeframe, so they have some immediate feedback, and then we should have a state report to you in June with some trend data, hopefully, as well as an update on how schools are certainly doing this school year, absolutely.

[02:06:49] - Thank you, Dr. Mann, with that helpful question, I'd be willing to wait until we can have the comparison, when we have the comparison it would really and i believe that the upcoming is they do middle school one year and then is it the is the expectation to alternate middle and high school for the student portion of the survey that is correct so last year we did middle schools this year we are doing high school and then like the staff portion is staff and faculty teachers is every year it is every year but we are

still alternating so this year we are focusing on teachers and staff in high schools Next year we will focus on students in middle schools, but we will pick up teachers in elementary and middle schools.

[02:07:25] So we have the entire band there. - So over the course of, ultimately-- - Two years, yes. - Every two years, we'll get everybody. - Yes, yeah, that is the idea. - So when you have those more thorough results, I mean, the next year results-- - Sure. - I would love to hear comparisons and just update us on that. - Absolutely.

[02:07:43] - Good work, thank you. - Thank you. And then my other item is item number -- excuse me, M, the math standards review, the timeline. I am -- as always, the department does such a thorough job of gathering input from so many different sources, and the timeline does lay that out in great detail.

[02:08:08] And as I read it, you're spending a year and a half almost gathering input and feedback from businesses and teachers and leaders and students and parents and then come to us with proposed revisions. I feel like unless I've missed something, we will not have had an opportunity to have input from the board to the standards that we will then be asked to act on until quite late in the game. That concerns me. I would like to encourage a revision

[02:08:44] into the timeline to get some input from the board earlier in the process while you're doing all that wonderful gathering of input from others. And I realize that we're not going to be asked to look at a draft appropriately, not until you've gathered all that input, but to come to us the way you're coming to all those community groups, et cetera, in a more open-ended conversation earlier on, if that were possible, I would love that.

[02:09:12] Thank you. Good morning, Board of Education members. I'm Tina Mazzecain, I'm the Mathematics Coordinator at the Virginia Department of Education. We would be more than happy to amend the timeline and add that step in. I think it would be very prudent and we'd be very happy to do so and report to the board prior to the first review of the standards.

[02:09:33] - And just to clarify, I'm not singling out math. The history standards that we'll be approving this year, we have had, for various reasons, lots of conversations on, but it really ought to be on a regular basis that we're engaged earlier on in the process.

[02:09:50] Thank you. - Thank you. - Thank you, Mr. President. And I'm just wondering is, are the input sessions available publicly? For example, if a board member wanted to sit in on one of the input sessions, could they so that they get the bird's eye view of what's happening with the standards process?

[02:10:10] - We typically have public hearings and those are open to the public, So certainly any member could attend that as well. - Thanks. - Is that it? Dr. Wilson. - Not a question for . But on item L, teacher licensure policy, the report that's come out of VCU, I believe Dr. Darling-Hammond referenced that yesterday.

[02:10:39] I'm just, not a question, but a comment, sorry. Ms. Clemmens. But our conversation earlier today as it relates to teacher licensure, the Praxis test, I think there may be some information or perhaps even further referencing in that report that may help our conversation around that particular item.

[02:11:01] So just in a quick glance, there is some conversation there about bias, about the use of licensure exams as a part of a larger picture for how we talk about teacher preparation. So absolutely. Thank you.

[02:11:18] Okay. Anybody else? I don't see anybody. we will move past written reports and on to discussion of current issues mr chapman thank you president gecker um president gecker if i might uh i'd like to begin with a brief update on a human research nora that the board approved at the november meeting sure thank you so at the

[02:11:57] november 2021 meeting the board approved a nora for an action to bring the board into compliance with virginia law regarding human research agency staff originally thought that this action was going to require a new chapter in the virginia administrative code however we do believe that we can accomplish this action by amending our current chapter 565. we do not believe that this is a substantial change to the action much more a technical change as to where the regulatory action is going to take place um so the the proposed plan is that agency staff is going to revise that nora before it's published uh in the virginia register um and of course the board will

[02:12:35] have the opportunity to review the action before it moves to the proposed stage and before it it move again before it moves to the final stage great so we have a new process that we're going to begin in order to be sure that the board is complying with Virginia law specifically section 2.2 - 4 0 1 7 of the Code of Virginia the Administrative Process Act which requires agencies to undergo periodic reviews of regulations every four years typically this is done by chapter under statute a periodic review must include two elements the first is a

[02:13:13] review by the office of the Attorney General to ensure the statutory authority of the board for the regulations and the second is a determination by the governor as to whether the regulations are one necessary to protect the public health safety and welfare and B are clearly or two are clearly written and easily understandable what we will do is we're to start noticing these periodic reviews on the virginia town hall and after publication in the virginia register there will be a 30-day period for the board to receive public comments regarding these regulations agency staff will then summarize the public comment and propose an action typically

[02:13:52] that's going to be to leave leave the the chapter as is to revise or or to repeal this will be summarized on a form called th07 which is very very similar to the the forms you're already used to seeing as part of the exempt actions the fast-tracked items and the noras the plan will be to update the board as to when we are opening periodic reviews during this section of your meeting most likely and we will likely open periodic reviews in the course of normal regulatory activity so there are there are a couple of chapters that are going to go more extensive revisions we can do a periodic review collateral to just a normal regulatory

[02:14:31] action so you know the results of all that again will come before the board in the regular course of business as an action item there's some good news and some bad news to this the bad news is that this is going to become a little bit of a cottage industry the board's regulatory catalog is fairly substantial and many of our regulations have not undergone reviews like this or revisions in quite some time so we do expect that this process is going to generate some activity for you all the good news is that you're going to see a bit more of me and that we're going to comply with our statutory obligations and really

[02:15:10] keep our regulatory house a bit tidier so we'd like to pursue a kind of an aggressive schedule for opening these periodic reviews in the first half of this year we intend to start with some of the proverbial low-hanging fruit the first three chapters which we intend to open up for periodic review in the next week are chapter 11 which is the regulations governing public participation this is a little bit longer of a chapter

but really what we do is we conform to the the model public participation guidelines put out by the Department of Planning and Budget so I've looked through these already there are a couple of spots for some very very minor changes in order to comply but

[02:15:48] we may not end up recommending those changes we'll certainly mark them for attention. Chapter 150, which is the management of students' scholastic record in the public schools in Virginia. And Chapter 210, which is classifications of expenditures. Again, we expect for these to be very quick and just move along. Let me ask. First of all, are there any questions from the board before I ask? Yeah. What are you citing as the statutory authority for doing this

[02:16:17] for us? Right. It's section 2.2-4017. Susan, are we subject to this or, you know, or is that an agency review? I have not had time to actually take a look at it. All agencies or all boards in agency? Yeah. Honestly, I think the board might want to have input into the cycle of this. You

[02:16:51] know, I don't know how other board members feel, but what we do, you know, we are not, as you know, an executive branch agency. And I'm not sure we want to cede the authority for what we're going to review and when we do it to VDOE at this point. I'm not saying we don't. I just don't know. I have not. This is the first I've heard of this. And I just want to be sure we're following a process that makes sense from the board's perspective, given our relatively unique place among the regulating bodies in the Commonwealth. We are constitutionally

[02:17:29] established, which separates us from pretty much everybody else, I guess, except maybe the SEC. And, you know, so I personally would hold off until we have a chance to actually look at this issue. Okay, sure. Unless, again, you know, I don't speak for the board on this. I speak for me on this. That's what I would do. The question is, is there anybody in the board who disagrees with that or who has an opinion on that one way or the other? Mr. President, I'm just pulling up the The statute, and it does seem to speak to the executive branch.

[02:18:09] It does. Like I said, I haven't had a chance to actually look at it in a way that I would like to look at it. The governor may require each agency to ABC. Which we are not. So it may be more directed. I mean, given that we adopt the regulations, obviously we would have some role at some point. But I think one could arguably read this as directing the department to review regs, and then if and when they think there's a need, they would have to obviously come to us. The department can review them. The department can't change them because that's our authority, right? All of that to say, Mr. President, I think

[02:18:48] you have a good question, but maybe we need legal counsel guidance on what our role in this is. And that's really all I'm asking, is that we take a little pause so we can figure out if this is right or not right. We'd be more than happy to do that, President Gecker, and figure that out.

[02:19:05] But as a reminder, all of the regulatory actions that the board pursues in the normal course are subject to executive branch review currently. But we would be glad to consult with Ms. Williams and we can provide an update for you. Yeah, I mean, clearly the regs are, but the body is not, right?

[02:19:24] I mean, peculiarly in Virginia, or maybe not peculiarly here, but the statutory and constitutional scheme really puts education much more squarely with the legislature and with this board than it does with the executive. Sure. And so, you know, I understand that there's an interplay with the executive in all of this, clearly, like regulatory approvals.

[02:19:46] You know, we've seen, you know, prior administrations hold some up, right, and some get moved through fairly quickly i mean there's a lot that can be done that way but in terms of overall supervision you know we are independent and uh you know i think i just want to understand better and i think the board ought to understand better what this implies as we move forward uh you know in terms of you know who runs the board does the board run the board or is video running the board

[02:20:21] Okay? Thank you, sir. Okay. And I take it from the lack of any other comments that nobody disagrees with that enough to upset that. You know, we'll take it up again in March once we have some time to actually look at the issue. All right. Any other items for discussion? I know, Dr. Duran, you had wanted to make some comments. Yes. Great news. We just heard from our new superintendent about the literacy bill, but I just wanted to take a moment to provide a little bit of information, and I would love if our superintendent would also like to comment for what's happening in current issues and this is a big current issue i believe that has very

[02:21:00] important progress being made around our literacy work in the commonwealth the bill that's moving forward has four key areas that i think we all should be familiar with and our community should be familiar with really around aligning our virginia curriculum assessments screeners and all the resources to the science of reading is a major shift that i'm really excited about another key part of the bill that's moving forward is making sure that our teacher prep programs begin to shift and ensure that our teachers that are coming up and through colleges of education are actually learning about the science of reading and how children's brains learn to read and it will

[02:21:37] direct them to move forward in that way that our current third areas that our current teaching staff have the right training to the certification process and any ongoing training that's provided and then a four key a very important area is that our parents have the resources that they need to ensure how they can support their children at home through that process so very exciting that these four tenants of what's happening in the legislature will have a major impact i believe in classrooms across the commonwealth and what we can do as a board in an area of priority to support that and so i wanted to make sure during this time of current issues that we're all aware of that that

[02:22:14] our public's aware of that that our educators know that as the state board that is very much in alignment with the work that we're trying to do but this shift to thinking about how students learn to read is fundamental if we're going to move forward in our commonwealth with the success that we all want for our students and i'm very excited to see that this is coming together so quickly i understand also from following the comments on the floor yesterday and also in conversation with our superintendent that our governor is very supportive of this work too and is looking at the implications that might be in place for those resources that school divisions are going to need to implement this.

[02:22:52] And so I'd like to defer now to our state superintendent if she has any other comments and thank her for her leadership yesterday and today and bringing on your eighth, ninth day in the job of bringing this to our Commonwealth. It's a needed area that we've been working on and I'm so excited that it's happening.

[02:23:09] Mr. President, Dr. Duran, thank you for those kind words and I wish I could take even one ounce of credit for the legislation that's moving through. but the truth is that um virginia has been thinking about this for a long time and um the result is solid legislation moving through uh the general assembly and so uh you know i'm i'm i'm here to add commentary and and passion and everything else but

the um you know the work is happening in districts like your own and it will be a matter of utilizing best practices

[02:23:45] and the playbook or the framework that some of this legislation really creates for the commonwealth to say again are we systemically aligned to support every school and every um every student across the commonwealth and that means that we have as you said our curriculum aligned our assessments aligned our interventions available to students early um and uh and that we provide support, both in teacher training, leadership training, regional training, making sure that we're monitoring our implementation. Because there's actually a book called Teaching Reading

[02:24:24] is Rocket Science. And it's a short read and it's a good read, but the title is what's catchy because so many have, over the years, have thought teaching reading was something that students acquired naturally. It's something that there were just good readers and bad readers and you couldn't really help if you were one or the other. You just went with it.

[02:24:47] And the truth is that almost all kids can learn to read at grade level given the right interventions, the right scope and sequence and intensity of instruction. And that's what I'm really excited to continue to share with this board as we move forward. And yesterday, you know, we enthusiastically shared podcasts that we had all listened to and speakers that we had heard from and it would be really wonderful to bring some of that to the board in a more formal way so that we just continue to have access to the the queue of research that's that's broad and deep

[02:25:22] and spans 40 years of education that says there is a right way to teach reading and anything other than the right way to teach reading is not acceptable it's wrong thank you for that and And Mr. President, I would like to recommend we find some way working with our state superintendent and our department staff to bring those presentations to the board meeting to have an opportunity, whether it's written report or some way to show and exemplify to our commonwealth and our educators who do watch these board meetings and who do follow along with the work that we're doing here.

[02:25:57] I know we talked yesterday, Ms. Holton, about the revision of the standard that's coming up in a couple of years, but still there's so much that we can be doing, I believe, to be advocates and to be leaders in this work and join partners in what's already happening in the General Assembly. But this is an exciting day for us in Virginia, and I hope that we all recognize and are aware of that.

[02:26:17] And not only in Virginia, but to be a leader in the nation in this work, because there are many states who are grappling with the same issue but do not have the unified support that we're seeing here, do not have the common understanding and the collaboration that we're seeing here amongst so many different parties, from university to local schools to teachers to our, again, our elected officials, we're seeing something very, very unique here in our state, and it is an opportunity to put us on the map of where we need to be around the world of literacy.

[02:26:47] So I'm very excited about that. Thank you, Mr. President. Any other comments there? I would like to say that I think it might be nice if we invited Juliet Clark to speak to us on this. And Juliet is or was a master's candidate at University of Virginia, who both got her law degree and her master's at the same time. She did the foundational work, actually even for Delegate Coiner, who sponsored this bill. The board

[02:27:21] allowed her to have us as a client a few years ago to research the science of reading and to make recommendations. And a lot of what you're seeing now going through the legislature is a product of

her thoughts and very fine research, along with others up at UVA.

[02:27:39] So if it is okay, I think we might try to invite Juliet to give the presentation that, honestly, she would have given back in 2021, but for the COVID pause we took. That would be wonderful. Yes, ma'am. I'd love that. And may I also ask that, assuming that this legislation continues to move forward as quickly as it is, perhaps we could get a fairly early briefing on what our role will be if any in the implementation and get started as our new superintendent will quickly learn if it wasn't true in her prior state the process

[02:28:17] requirements that we're required to go through are sometimes shockingly slow and so if we want something to like actually have an impact in the classroom anytime this century um we we almost have to get started on it yesterday so if there are if there is a role for us on the preparation programs for instance or on what we're doing uh with professional development requirements etc um let's figure it out and jump start it and move so or at least be aware of what our role is so that that we can start.

[02:28:54] - Yeah, well the bill does include issues with regarding both teacher prep and licensure. - And the fact that there's legislation will enable us to move more quickly and Mr. Chapman will enable us to move more quickly. So we look forward to doing our part.

[02:29:11] - Okay, anybody else have any comments? Seeing none, I guess we'll see y'all in March. The board is adjourned, thank you.